

Christopher Fowler

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June 12, 2026

Texas Workforce Commission

Commission Appeals

TWC Building, Room 678

101 E. 15th Street

Austin, TX 78778

RE: Supplemental Statement — Good Cause for Non-Appearence at Appeal Tribunal Hearing

Claimant: Christopher Fowler | SSN: XXX-XX-7632

Commission Appeal Confirmation No.: 12855351

Appealed Decision: Appeal Tribunal Decision No. 4061814-1-1, mailed May 19, 2026

Original Hearing Date: May 15, 2026

Dear Commission Appeals:

I respectfully submit this supplemental statement in support of my Commission appeal, Confirmation No. 12855351, filed June 2, 2026. The purpose of this statement is to provide the Commission with a full explanation of why I did not appear at the May 15, 2026 Appeal Tribunal telephone hearing, and to establish that my non-appearance was due to circumstances entirely beyond my control.

I. I Never Received the Notice of Hearing.

I did not appear at the May 15, 2026 hearing because I never received a Notice of Hearing. I was not aware the hearing had been scheduled, and I had no opportunity to appear or offer evidence.

This is not a situation where I received a notice and chose to ignore it. I received no notice whatsoever. The following documented facts confirm this:

1. **TWC confirmed it had my correct address.** On February 26, 2026, I received a written notice from the TWC Appeals Tribunal (Appeal No. 4061814, Case Activity Date 02-26-26) at my current address: 7600 Highmeadow Dr Apt 1053, Houston TX 77063. That notice stated that a Notice of Hearing would be mailed to me at the same address. I received that February 26 letter without issue, which confirms that TWC had my correct mailing address. (See Enclosure A: TWC Appeals Tribunal Notice, Feb. 26, 2026.)
2. **The Notice of Hearing was sent by physical mail only and never arrived.** TWC's own online correspondence system shows a notification dated April 24, 2026, stating: "Check your mailbox. TWC sent you paper documents that could not be sent through electronic correspondence." This confirms that the Notice of Hearing was sent exclusively by physical mail — it was not transmitted electronically or made available in my online account. The physical notice was never delivered to me. (See Enclosure B: TWC "Paper Documents Mailed" Notice, Apr. 24, 2026.)
3. **No hearing notice exists in my TWC online inbox.** I have reviewed my complete online correspondence history, which contains 55 documents. No Notice of Hearing for Appeal No. 4061814 appears anywhere in that inbox. Because the notice was sent by physical mail only, I had no way to discover it electronically.
4. **I did not discover the online notification until after the hearing had already passed.** The April 24, 2026 online notification informing me to check my mailbox was not opened until June 5, 2026 — three weeks after the May 15 hearing. Because the notification gave no indication of its contents, subject, or urgency, I had no reason to act on it before the hearing date.

II. My Non-Appearance Was Involuntary.

I did everything I was reasonably required to do: I participated in the initial TWC proceedings, I was notified of the employer's appeal, and I was at my correct mailing address throughout. The failure of the hearing notice to reach me was not the result of any inaction, negligence, or deliberate choice on my part. I was not hiding from the proceedings. I simply never received notice that a hearing had been scheduled.

Under these circumstances, I respectfully submit that I have established good cause for my non-appearance within the meaning of applicable TWC rules.

III. I Have a Meritorious Defense.

My non-appearance also resulted in a substantial injustice, because I have strong grounds to contest the employer's position on the merits. My full written statement is submitted separately as a companion document to this appeal, and I respectfully request that the Commission consider both documents together.

In brief: I was terminated by Centene Corporation on November 20, 2025, based on an attendance point total of 8.5 points. However, 1.5 of those points — assigned for absences on November 13 and November 18, 2025 — fall squarely within a TWC-approved FMLA leave window (Leave ID 18087586, approved October 24, 2025 – January 1, 2026). Under the Family and Medical Leave Act, 29 U.S.C. § 2615(a)(1), an employer may not count FMLA-protected absences against an employee under an attendance policy. Removing those two protected absences reduces my point total to 7.0 — below the 8-point termination threshold — meaning my termination was unlawful.

IV. Relief Requested.

I respectfully request that the Commission:

1. Find that I had good cause for my non-appearance at the May 15, 2026 Appeal Tribunal hearing based on the foregoing;
2. Remand this matter to the Appeal Tribunal for a new hearing at which I may appear and present evidence; or, in the alternative,
3. Decide this Commission appeal on the merits based on the written record, including this statement, the attached written statement, and all supporting documents submitted herewith.

I am prepared to provide any additional information the Commission may require. Please contact me at (832) 783-0800 or houtx3@gmail.com.

Thank you for your consideration of this matter.

Respectfully submitted,

Christopher Fowler — Signature

Date

Enclosures:

Enclosure A — TWC Appeals Tribunal Notice, February 26, 2026 (Doc. 10)

Enclosure B — TWC “Paper Documents Mailed” Notice, April 24, 2026 (Doc. 11)

Enclosure C — Written Statement of Christopher Fowler (Full Merits Argument)

Enclosure D — Supporting Documents 01–11